

SENATE BILL 1749

By Bowling

AN ACT to amend Tennessee Code Annotated, Section 39-11-611; Title 39, Chapter 13, Part 10 and Title 39, Chapter 14, Part 4, relative to trespass.

BE IT ENACTED BY THE GENERAL ASSEMBLY OF THE STATE OF TENNESSEE:

SECTION 1. Tennessee Code Annotated, Section 39-13-1003, is amended by deleting the section and substituting:

(a) A person commits aggravated burglary who:

(1) Commits burglary, as described in § 39-13-1002, of a habitation; or

(2) Commits an aggravated criminal trespass in a habitation, as described in § 39-14-406, and during commission of the aggravated criminal trespass encounters the property owner using or displaying a firearm in self-defense, pursuant to § 39-11-611.

(b) Aggravated burglary is a Class C felony.

SECTION 2. Tennessee Code Annotated, Section 39-14-405, is amended by deleting subdivision (g) and substituting:

(g) Criminal trespass is a Class C felony.

SECTION 3. Tennessee Code Annotated, Section 39-14-406, is amended by deleting the section and substituting:

(a) A person commits aggravated criminal trespass who enters or remains on property when the person knows the person does not have the property owner's effective consent to do so, and:

(1) The person intends, knows, or is reckless about whether such person's presence will cause fear for the safety of another;

(2) The person, in order to gain entry to the property, destroys, cuts, vandalizes, alters, or removes a gate, signage, fencing, lock, chain, or other barrier designed to keep trespassers from entering the property; or

(3) The person, while on the property, recklessly damages the property or personal property thereon.

(b) For purposes of this section, "enter" means intrusion of the entire body.

(c) Aggravated criminal trespass is a Class C felony.

SECTION 4. Tennessee Code Annotated, Section 39-14-407(a), is amended by deleting "Class C misdemeanor" and substituting "Class C felony".

SECTION 5. This act takes effect July 1, 2026, the public welfare requiring it, and applies to acts occurring on or after July 1, 2026.